



January 22nd 2019 Delaware County Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=9uuTYf6i2NM
Publication Date	2019-01-23T18:00:10Z
Target Category	delaware_county

Notice: This report is provided by the [Muncie Policy Memo](#) as a public service. This summary is generated automatically using artificial intelligence from public video transcripts, both of which are prone to error. The report is intended to provide an overview of meeting business and an aid to accessing detailed information from the video recording. When accuracy is critical, please refer to the official video recording or approved minutes.

Delaware County Commissioners Meeting Summary

Meeting Date: Tuesday, January 22, 2019

Published: Civic Analysis Report

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the Delaware County Commissioners meeting to order on Tuesday, January 22, 2019, at 9:04 AM [00:00:06](#).
- **Attendance:**
 - Present: Mr. King, Mr. Henry, and Commissioner Reggins (President/Presiding Officer).
 - Absent: Not explicitly stated.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance and welcoming remarks [00:00:09](#).
- **Approval of Minutes:** *Not explicitly detailed in the transcript text.*

4. Substantive Business & Board Action

- **00:01:12 Right-of-Way Easement Name Change**
 - **Sponsor / Presenter:** Redevelopment Commission / Board.
 - **Deliberation Summary:** The board discussed a name change for a sliver of county ground previously held for the use and benefit of the Department of Redevelopment, changing it over to "Delaware County Indiana." This administrative change allows the county broader use without repeatedly navigating redevelopment commission review hoops.
 - **Action & Vote Disposition:** Approved by Voice Vote (Motion seconded and passed unanimously: Mr. Henry - yes, Mr. King - yes, Commissioner Reggins - yes).
- **00:02:02 Inmate Mental Health Services Agreement**
 - **Sponsor / Presenter:** County Commissioners / Sheriff's Office.
 - **Deliberation Summary:** The agreement was kept on the table. A copy was sent to the sheriff to make revisions and return it in time for the next meeting.
 - **Action & Vote Disposition:** Left on the table / Deferred to the next meeting.
- **00:02:40 East Central Indiana Small Business Development Center Funding Request**
 - **Sponsor / Presenter:** Representative for the ECI Small Business Development Center.
 - **Deliberation Summary:** The presenter highlighted 2018 metrics (assisting 9 new businesses, retaining/increasing 35 jobs, securing \$3.673 million in investments across 110 clients, and holding 17 local training events with 457 attendees). Due to missing the application window in 2018 (funded at \$5,000 in 2017), the center requested \$10,000 for 2019 to cover both years. Commissioners briefly discussed whether an EDIT (Economic Development Income Tax) grant would apply, noting EDIT is generally targeted toward rehabilitation rather than this type of operational request.
 - **Action & Vote Disposition:** *No final funding vote recorded in this segment.*
- **00:05:58 Ordinance 2019-02: Amendment to Delaware County Comprehensive Zoning Ordinance (CAFOs / CFOs)**
 - **Sponsor / Presenter:** Marta Martille, Executive Director of the Delaware-Muncie Metropolitan Planning Commission.
 - **Deliberation Summary:** Presentation of an ordinance text amendment inserting requirements for Confined Feeding Operations (CFOs) and Concentrated Animal Feeding Operations (CAFOs). The Planning Commission returned a favorable recommendation (8-0, 1 absent). The framework categorizes the county into three tiers based on housing density: Level 1 (0<U+2013>16 homes), Level 2 (17<U+2013>32 homes), and Level 3 (33+ homes, defined as rural residential). Levels 1 and 2 permit CFOs/CAFOs subject to site review; Level 3 treats them as special uses requiring BZA public hearings. Extensive setbacks were included to effectively prohibit lagoons. Public and board debate focused heavily on whether

measurements should be “structure-to-structure” versus “property-line-to-property-line,” and whether all CFOs/CAFOs should automatically be designated as special uses.

- **Item-Specific Public Input:**
 - Jenny Irving ([013:58]): Noted committee division (3-3) and argued that setbacks should be measured strictly from property lines rather than structure-to-structure to protect landowner rights.
 - **Action & Vote Disposition:** Passed on Second Reading by Voice Vote (Motion to adopt made and seconded; roll call/voice vote recorded: Mr. King - yes, Mr. Henry - yes, Commissioner Reggins - yes). *Note: Commissioners noted that the ordinance could be adopted immediately to establish baseline rules, with the option to send it back to committee later for amendments.*
 - **00:01:59 Ordinance 2019-03: Family Recovery Court Grant Fund Establishment**
 - **Sponsor / Presenter:** Emily Anderson, Court Administrator.
 - **Deliberation Summary:** Request to establish a new fund to receive a juvenile court grant supporting the Family Recovery Court.
 - **Action & Vote Disposition:** Approved by Voice Vote.
 - **00:03:00 Claims Approval**
 - **Sponsor / Presenter:** County Administration / Department Heads.
 - **Deliberation Summary:** Review and approval of monthly claims/reports totaling \$1,475,134.09.
 - **Action & Vote Disposition:** Approved by Voice Vote (Mr. Henry - yes, Commissioner Reggins - yes, Mr. King - yes).
-

5. Open Public Comment / Citizen Forum

- **00:23:44 Elizabeth (Resident - 1400 West)**
 - Expressed concerns regarding Ordinance 2019-02. Asked the board to send the ordinance back to committee to mandate that all CFOs/CAFOs go before the BZA as a “special use” rather than just a site-by-site administrative review, providing a fair and predictable due process for neighbors.
- **00:24:37 Linda Hansen (League of Women Voters spokesperson - 1400 West)**
 - Stated that Ordinance 2019-02 does not serve residents well and conflicts with the “Vision 2021” economic plan regarding quality of life and place. Urged the board to designate all CAFOs/CFOs as special uses in farming zones subject to BZA public hearings, and requested a moratorium extension until a new committee could draft stronger protections.
- **00:27:12 Jenny Irving (Committee Member)**
 - Reiterated that the committee was deeply divided (3-3) and argued that the current committee makeup would not produce stronger changes. Suggested sending future amendments to a neutral committee or incorporating fresh members.

- **00:29:47 Dr. Donald Hamburg (President, Environmental Testing Laboratory)**
 - Raised public health concerns regarding the lack of federal USDA regulations on pathogen/microorganism spread (such as Salmonella) from CAFOs, asserting that current setbacks are insufficient to protect neighboring human health.
- **00:32:26 Mitch Isaacs (President, Country Village Creek Wood Neighborhood Association)**
 - Addressed high wastewater treatment costs (\$100/month) paid by his community under the Delaware County Regional Wastewater District compared to municipal averages. Asked if commissioners would sit down with the Mayor and Muncie Sanitary District leadership to explore consolidation and rate relief options.
- **00:41:34 Constance Ray (Resident - 1217 North 225 West)**
 - Presented visual aids showing how setback requirements negatively impact private property rights and future subdivision potential in bedroom communities. Noted that Blackford County treats CAFOs as special uses.
- **00:44:53 Tonya Evans (Resident - 2050 West County Road 1217 North)**
 - Expressed deep disappointment with the board's adoption of Ordinance 2019-02, stating it violates the board's oath to protect resident health, welfare, property rights, and environmental rights.
- **00:45:37 Resident (12660 East Eaton Pike)**
 - Criticized Ordinance 2019-02 as a "toothless, watered-down ordinance" created by an unbalanced committee. Suggested supporting pasture-based, neighbor-friendly agriculture and Purdue Extension expertise instead. Urged Commissioner Reggins to motion to send the ordinance back to committee.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Following the public comments regarding wastewater rates, the board attorney was directed to reach out to the Mayor and arrange a joint discussion with the Delaware County Regional Wastewater District board (noted for their next meeting on the 6th).
 - Discussion occurred regarding statutory paths to amend zoning ordinances post-adoption via Indiana Code 36-7-4-602.
- **Adjournment:** Motion made and seconded to adjourn **00:48:42**. Approved by Voice Vote (Mr. King - yes, Mr. Henry - yes).